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File No: EXP202409064

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR

RECOGNITION

OF RESPONSIBILITY AND

VOLUNTARY PAYMENT

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 17, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the FEDERACION DE COLOMBICULTURA DE CASTILLA-LA MANCHA (hereinafter, FCCM), through the agreement that is transcribed:

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File No: EXP202409064

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 7, 2024, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to the FEDERACIÓN DE COLOMBICULTURA DE CASTILLA LA MANCHA with NIF G02478063 (hereinafter, the complained party) based on the following facts.

The complainant states that they are a member of the complained party and that it is currently in an electoral period, for which it has prepared a census of members entitled to vote that has been published on the entity's website, being accessible to any user through the link where it is published, freely, with the complainant's data exposed such as their name and surname, identification document number, and date of birth, without their consent and without the necessary security and confidentiality measures being adopted in the processing of their data.

In their complaint, they indicate the link to the webpage of the complained party where the census has been published and provide a copy of the document titled Electoral Census. Elections 2024, which consists of the following sections: club constituency; athlete constituency; referees and judges constituency; inspectors constituency.

Specifically, in the athlete constituency, there is a list with the following data: name, ID number, license, date of birth, and club.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on June 20, 2024, the aforementioned complaint was forwarded to the complained party, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on June 21, 2024, as evidenced by the acknowledgment of receipt in the file.

On July 22, 2024, a response was received from the complained party, in which it states that, upon receiving the letter from the AEPD, it immediately proceeded to restrict access to the electoral census that was exposed on the website; steps were initiated to introduce a private area on our website to allow access to individuals who possess the corresponding federative license, through prior identification.

It also indicates that decisions are being made to prevent similar incidents from occurring and that the

following measures have been adopted:

1. Direct access by third parties to the publication of the electoral census on the complained party's website has been eliminated;
2. The census has been posted on the notice board and an email address has been enabled for interested federated members to request access to the electoral census through it, and it has been informed that the document is available in the corresponding federative offices;
3. The website is being reviewed to introduce a private area that allows access to individuals who possess the corresponding federative license, through prior identification;
4. A training workshop will be held for employees of the entity with access to data, with the aim of raising awareness about the importance of guaranteeing the fundamental right to personal data protection;
5. Our "Policy on the Use of the Information System" has been re-provided to employees, which establishes their obligations regarding the use of personal data and other information protected by the duty of confidentiality and responsibility of the entity.

Along with its response to the forwarding, the complained party attaches the following documents:

- The technical report from the Data Protection Officer, ***CONSULTORA.1, dated July 4, 2024, which concludes as follows:

1. In conclusion, the publication of the electoral census on the entity's website has been carried out in accordance with the provisions of the aforementioned regulations. However, it is recommended to eliminate direct publication and include an alternative access route, such as the creation of a private area for federated members, after the complaint period against it has passed.

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2.

On the other hand, in compliance with the provisions established in the Electoral Regulation of the Federation, it is recommended to enable an email address where federated members can contact the entity to request a copy of the electoral census for their review.

3.

It is recommended to conduct a training action to raise awareness among all members of the entity about the importance of the protection and processing of personal data within the scope of their activities.

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Screenshot of the link www.colombiculturamanchega.es/2024/07/12/censo-electoral-2024 where the electoral census is not listed and the following is indicated:

Telematic access to the census is restricted, upon identification, to those who hold a federative license and to the entities that are part of or integrated into the federation. To access it, it will be necessary to send a request to the following email address presidencia@colombiculturamanchega.es. It will also be available to you at the corresponding federative offices.

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Copy of the Order of 02/08/2011, from the Ministry of Education, Culture, and Sports, regulating the electoral processes of the Sports Federations of Castilla-La Mancha.

THIRD: On 16/08/2024, in accordance with Article 65 of the LOPDGDD, the claim presented by the claimant was admitted for processing.

FOURTH: According to the report collected from the AXESOR tool, the claimed party is an entity established in the year 1999, with a business volume of 39,513 euros.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4.1) of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2) of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

Article 4.7) of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of such processing are determined by Union law or the law of the Member States, the controller or the specific criteria for its designation may be provided for by Union law or the law of the Member States." Likewise, Article 4.8) of the GDPR defines the "processor" or "processor" as: "the natural or legal person, public authority, agency, or other body that processes personal data on behalf of the controller."

In the present case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, as the claimed party carries out, among other processes, the collection, recording, organization, storage, and use, and in the case at hand, publication, of, among others, the

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the following personal data of individuals: name and surname, ID number, date of birth, federation license number, and the Club to which they belong.

The responding party carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

IV

Obligation breached: Integrity and confidentiality

Article 5, Principles relating to processing, of the GDPR states in its paragraph 1, letter f) the following:

"1. Personal data shall be: (...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality') (...)"

In this regard, data controllers must ensure the integrity and confidentiality of the personal data being processed through all types of technical and organizational measures. Compliance with this provision would therefore be verified by i) the adoption and compliance with all types of technical and organizational measures aimed at ensuring the confidentiality and integrity of the personal data being processed ii) the absence of situations of loss of confidentiality or integrity of the processed personal data. Non-compliance, on the other hand, would arise from the absence of measures or non-compliance with those adopted and from a loss of confidentiality of the data being processed. In light of the facts indicated in the complaint, it should be noted that the Order of 02/08/2011, which regulates the electoral processes of the Sports Federations of Castilla-La Mancha, provides in its Article 3, Approval of the Electoral Regulation, the following:

"1. Each federation shall approve its own electoral regulation, which must comply with Law 1/1995 of March 2 and its implementing regulations, including this Order, as well as with the statutes of the corresponding sports federation. In case of contradiction between the statute and the electoral regulation, the former shall prevail over the latter."

And Article 6 of the aforementioned Order - Electoral Roll - states the following (the underlining is from this AEPD):

2. The day after the agreement to call for elections and for a period of fifteen calendar days, the provisional electoral roll shall be displayed on the notice boards of the federation and on its institutional website, if it has one. During the exposure period, any federated person or representative of a federated club may request the provisional electoral roll for examination, being able to request it and have it sent electronically.

3. During the exposure period and, from its conclusion, for a period of three working days, any federated person or federated club may submit a complaint to the federative electoral board against the provisional electoral roll. The federative electoral board shall resolve within three working days from the submission of the complaint. The resolution issued by the federative electoral board shall be subject to appeal before the Electoral Guarantees Board, within five working days.

4. Once all complaints or appeals against the provisional electoral roll have been resolved, if applicable, or after the deadlines for their submission have passed without any being submitted, the provisional electoral roll shall be elevated to definitive. No complaints or appeals may be submitted against the definitive electoral roll in the subsequent phases of the electoral process, unless a complaint was submitted against the provisional electoral roll and the effects of the resolution of that complaint were not included in the definitive electoral roll.

5. Both the provisional and definitive electoral rolls must include the following data, which shall coincide with those recorded in the respective files of the federation:

a) Regarding athletes, coaches, judges, and referees: name, surname, age, federation license number, and National Identity Document number. In the case of athletes and coaches who are affiliated with a sports club, the club of affiliation shall be recorded.

b) Regarding sports clubs: name, postal address, federation license or registration number.

6. Any specific information regarding the personal data contained in the Electoral Roll is prohibited. In any case, the provisions of Organic Law 15/1999 of December 13, on the protection of personal data, shall apply.

For its part, the Electoral Regulation of the Federation of Colombiculture of Castilla-La Mancha, in sections 6 and 7 of its Article 5, Preparation of the electoral roll, states in identical terms:

6. Both the provisional and definitive electoral rolls must include the following data, which shall coincide with those recorded in the respective files of the FCCLM.

a) Regarding athletes, technical inspectors, judges, and referees: name, surname, age, federation license number, and National Identity Document number. In the case of athletes and technical inspectors who are affiliated with a sports club, the club of affiliation shall be recorded.

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b) In relation to sports clubs: name, postal address, and registration number.

7. Any specific information regarding the personal data contained in the Electoral Roll is prohibited. In any case, the provisions of Organic Law 15/1999 of December 13, on the protection of personal data, shall apply.

Having established the above, let us recall that, in the case at hand, it is noted that the responding party has published, on its website and openly, that is, accessible to anyone who entered its website, personal data collected in the electoral roll prepared for the 2024 elections. More specifically, and as indicated by the claimant, the names and surnames, ID numbers (DNI), date of birth, federation license number, and club to which all athlete members of the claimed Federation belong were published. In this regard, and although these are data corresponding to those that make up the electoral roll whose preparation is provided for by the applicable regulations—understanding that the date of birth could be interpreted as equivalent to the age provided for by the regulations—these are personal data whose confidentiality has not been duly preserved by the data controller, who has published them openly and without restrictions and, therefore, has allowed them to be accessible beyond compliance with the purpose of transparency and ensuring the proper development of the electoral process.

Therefore, in the present case, a breach of personal data has been established, materialized by a loss of confidentiality of the claimant's data contained in the roll published by the responding party, openly and without restrictions.

On the other hand, it should also be noted that the recommendations made by the Data Protection Delegate of the responding party are recorded in the file, in which compliance is reported regarding the adoption of measures aimed at ensuring the confidentiality of the information processed in the context of electoral processes.

The measures adopted subsequently demonstrate that the measures initially implemented concerning the data that the responding party subjected to processing were not adequate to ensure the confidentiality of personal data at the time the personal data breach occurred.

It must be remembered that the adoption and compliance with technical and organizational measures of all kinds aimed at ensuring the confidentiality and integrity of personal data are key elements in guaranteeing the fundamental right to data protection. This is because it is not possible to ensure the aforementioned right if it is not possible to guarantee the confidentiality, integrity, and availability of personal data.

In order to be in the best position to adopt these measures, the GDPR establishes that data controllers and processors conducting processing activities with personal data must carry out a risk analysis of the

treatment in order to establish measures of all kinds aimed at complying with the principles of protection by design and by default that guarantee the rights and freedoms of individuals.

A risk analysis that it is not recorded that the respondent had carried out, just as it had not adopted the measures that would ensure the confidentiality of the personal data subject to treatment. And this, without prejudice to the fact that, upon receiving the complaint, the respondent adopted a series of decisions and measures aimed at ending the created situation; among them, as reported:

The elimination of direct access by third parties to the publication on the respondent's website of the electoral roll.

The display of the electoral roll on the notice board, enabling an email address for interested federated members to request access to the electoral roll through it.

The review of the website to introduce a private area that allows, through prior identification, access to individuals who hold the corresponding federative license, as well as to the competent federative

bodies or entities, among other information, to the electoral roll when appropriate.

A training workshop for employees of the entity with access to data, with the aim of raising awareness about the importance of guaranteeing the fundamental right to the protection of personal data.

Providing the "Information System Use Policy" to employees, which establishes their obligations regarding the use of personal data and other information protected by the duty of confidentiality of the entity's responsibility.

Therefore, in accordance with the indications available at this moment of the initiation of sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to the respondent, for violation of Article 5.1 f) GDPR.

V

Classification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

In accordance with the evidence available and without prejudice to what results from the instruction, it is considered that the respondent did not duly guarantee the confidentiality of personal data.

The infringement attributed to the entity is classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is subject to sanction, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

And in its Article 72, it considers for the purposes of prescription that: "Infringements considered very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, those infringements that involve a substantial violation of the articles mentioned therein are considered very serious and will prescribe in three years, particularly the following:

(...)

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

VI

Proposal for sanction

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and detriment they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

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g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or the processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the controller or the processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The ongoing nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

In the present case, considering the severity of the possible infringement, particularly regarding the consequences that its commission causes to the affected party, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of the claimed party is considered beforehand.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 5.1 f) of the GDPR, allows for the initial setting of an administrative fine of 1,000.00 euros.

Therefore, in accordance with the aforementioned, by the Presidency of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the FEDERACIÓN DE COLOMBICULTURA DE CASTILLA LA MANCHA, with NIF G02478063, for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT B.B.B. as Instructor and C.C.C. as Secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaints filed by

the complainant and their documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanctions that may correspond would be for the infringement of Article 5.1.f) of the GDPR, a fine of 1,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to the FEDERACIÓN DE COLOMBICULTURA DE CASTILLA LA MANCHA, with NIF G02478063, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, according to the provisions of Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in the present procedure. With the application of this reduction, the total sanction would be established at 800.00 euros, and its payment will imply the termination of the procedure, resolving the procedure with the imposition of this sanction.

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In the same way, at any time prior to the resolution of this procedure, the voluntary payment of the proposed sanction may be made, which will entail a reduction of 20% of its amount. With the application of this reduction, the total sanction would be established at 800.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be established at 600.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (800.00 euros or 600.00 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be made against this act.

Lorenzo Cotino Hueso
President of the Spanish Agency for Data Protection

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SECOND: On March 31, 2025, FCCM proceeded to pay the sanction in the amount of 600.00 euros, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility in relation to the facts referred to in the initiation agreement and its legal qualification.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the impropriety of the latter has been justified, the voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be determined in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

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In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 600.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, FCCM has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided for. In accordance with paragraph 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative pathway against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution. The sum of the aforementioned amounts yields a total of 1,000.00 euros.

After FEDERACION DE COLUMBICULTURA DE CASTILLA-LA MANCHA has proceeded with the prompt payment and acknowledgment of responsibility, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the total mentioned by 40%, which results in the final amount of 600.00 euros. The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or waiver of any action or appeal in the administrative pathway.

SECOND: TO DECLARE the termination of procedure EXP202409064, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to FEDERACION DE COLUMBICULTURA DE CASTILLA-LA MANCHA.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility upon the withdrawal or waiver of any action or appeal in the administrative pathway, this resolution shall be final in the administrative pathway and fully enforceable from its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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